

Lease Agreement

Risk Review



Customer: CHEYENNE, CITY OF

Bill To: CITY OF CHEYENNE
INFO TECHNOLOGY DIV
RM 110
2101 ONEIL AVE
CHEYENNE, WY 82001-3512

Install: CITY OF CHEYENNE
INFO TECHNOLOGY DIV
RM 110
2101 ONEIL AVE
CHEYENNE, WY 82001-3512

State or Local Government Negotiated Contract : 072164800

By: CS
Date: 8-6-13

Approved as to
form only:

GYT
Date: 8/6/13

Solution

Item	Product Description	Agreement Information	Trade Information	Requested Install Date
1. D95CPC (D95 COPIER/PRINTER)	- 95 Ppm Kit - High Capacity Feeder - Standard Install - Pdf Kit - D5 Bkltfinshr Xc 2/3 - Customer Ed - Analyst Services	Lease Term: 60 months Purchase Option: FMV	- Xerox P4595CP S/N FBG482553 Trade-In as of Payment 60	9/3/2013

Monthly Pricing

Item	Lease Minimum Payment	Print Charges			Maintenance Plan Features
		Meter	Volume Band	Per Print Rate	
1. D95CPC	\$656.69	1: Meter 1	All Prints	\$0.0092	- Consumable Supplies Included for all prints - Pricing Fixed for Term
Total	\$656.69	Minimum Payments (Excluding Applicable Taxes)			

Authorized Signature

Customer acknowledges receipt of the terms of this agreement
which consists of 4 pages including this face page.

Signer: THERESA SNYDER

Phone: (307)637-6297

Signature: _____

Date: _____

Thank You for your business!
This Agreement is proudly presented by Xerox and

Rich Kuskie
(307)634-2679

For information on your Xerox Account, go to
www.xerox.com/AccountManagement



Terms and Conditions

the Equipment; (ii) you are a lessor of the Equipment and your first lessee no longer uses or possesses it; or (iii) upon the expiration or termination of this Agreement, unless you have exercised your option to purchase the equipment. Neither Xerox nor its licensors warrant that Software will be free from errors or that its operation will be uninterrupted. The foregoing terms do not apply to Diagnostic Software or to software/documentation accompanied by a clickwrap or shrinkwrap license agreement or otherwise made subject to a separate license agreement.

10. SOFTWARE SUPPORT. Xerox (or a designated servicer) will provide the software support set forth below ("Software Support"). For Base Software, Software Support will be provided during the initial Term and any renewal period but in no event longer than 5 years after Xerox stops taking customer orders for the subject model of Equipment. For Application Software, Software Support will be provided as long as you are current in the payment of all applicable software license and support fees. Xerox will maintain a web-based or toll-free hotline during Xerox's standard working hours to report Software problems and answer Software-related questions. Xerox, either directly or with its vendors, will make reasonable efforts to: (a) assure that Software performs in material conformity with its user documentation; (b) provide available workarounds or patches to resolve Software performance problems; and (c) resolve coding errors for (i) the current Release and (ii) the previous Release for a period of 6 months after the current Release is made available to you. Xerox will not be required to provide Software Support if you have modified the Software. New releases of Software that primarily incorporate compliance updates and coding error fixes are designated as "Maintenance Releases" or "Updates". Maintenance Releases or Updates that Xerox may make available will be provided at no charge and must be implemented within six months. New releases of Software that include new content or functionality ("Feature Releases") will be subject to additional license fees at Xerox's then-current pricing. Maintenance Releases, Updates and Feature Releases are collectively referred to as "Releases". Each Release will be considered Software governed by the Software License and Software Support provisions of this Agreement (unless otherwise noted). Implementation of a Release may require you to procure, at your expense, additional hardware and/or software from Xerox or another entity. Upon installation of a Release, you will return or destroy all prior Releases.

11. DIAGNOSTIC SOFTWARE. Software used to evaluate or maintain the Equipment ("Diagnostic Software") is included with the Equipment. Diagnostic Software is a valuable trade secret of Xerox. Title to Diagnostic Software will remain with Xerox or its licensors. Xerox does not grant you any right to use Diagnostic Software, and you will not access, use, reproduce, distribute or disclose Diagnostic Software for any purpose (or allow third parties to do so). You will allow Xerox reasonable access to the Equipment to remove or disable Diagnostic Software if you are no longer receiving Maintenance Services from Xerox, provided that any on-site access to your facility will be during your normal business hours.

PRICING PLAN/OFFERING SELECTED:

12. COMMENCEMENT & TERM. This Agreement is valid when accepted by Xerox. The Term for each unit of Equipment will commence upon: (i) the delivery of customer-installable Equipment; or (ii) the installation of Xerox-installable Equipment ("Commencement Date") and will continue for the number of full calendar months shown as "Lease Term" on the face of this Agreement. Any partial month in the Term will be billed on a pro rata basis, based on a 30 day month. Unless either party provides notice of termination at least thirty days before the expiration of the initial Term, it will renew automatically on a month-to-month basis on the same terms and conditions. During this renewal period, either party may terminate the Equipment upon at least 30 days notice. Upon termination, you will make the Products available for removal by Xerox. At the time of removal, the Equipment will be in the same condition as when delivered (reasonable wear and tear excepted).

13. PAYMENT. Payment (including applicable Taxes) is due within 30 days after the invoice date, with all charges being billed in arrears. This Agreement will not be automatically renewed.

14. LATE CHARGE. If a payment is not received by Xerox within 10 days after the due date, Xerox may charge, and you will pay, a late charge of 5% of the amount due or \$25, whichever is greater.

15. FIXED PRICING. If "Pricing Fixed for Term" is identified in Maintenance Plan Features, the maintenance component of the Minimum Payment and Print Charges will not increase during the initial Term of this Agreement.

16. DELIVERY, REMOVAL & RELOCATION. Equipment prices include standard delivery charges and, for Equipment for which Xerox retains ownership, standard removal charges. Non-standard delivery, removal and Equipment relocation must be

arranged (or approved in advance) by Xerox and will be at your expense.

17. TAXES. You will be responsible for all applicable taxes, fees or charges of any kind (including interest and penalties) assessed by any governmental entity on this Agreement or the amounts payable under this Agreement ("Taxes"), which will be included in Xerox's invoice unless you timely provide proof of your tax exempt status. Taxes do not include personal property taxes in jurisdictions where Xerox is required to pay personal property taxes, and taxes on Xerox's income. This Agreement is a lease for all income tax purposes and you will not claim any credit or deduction for depreciation of the Equipment, or take any other action inconsistent with your role as lessee of the Equipment.

18. PURCHASE OPTION. If not in default, you may purchase the Equipment, "AS IS, WHERE IS" and WITHOUT ANY WARRANTY AS TO CONDITION OR VALUE, at the end of the initial Term for the "Purchase Option" indicated on the face of this Agreement (i.e., either a set dollar amount or the fair market value of the Equipment at the expiration of the initial Term), plus all applicable Taxes.

19. DEFAULT & REMEDIES. You will be in default under this Agreement if (1) Xerox does not receive any payment within 15 days after the date it is due, or (2) you breach any other obligation in this or any other agreement with Xerox. If you default, Xerox may, in addition to its other remedies (including cessation of Maintenance Services), remove the Equipment at your expense and require immediate payment, as liquidated damages for loss of bargain and not as a penalty, of: (a) all amounts then due, plus interest from the due date until paid at the rate of 1.5% per month; (b) the Minimum Payments (less the Maintenance Services and Consumable Supplies components thereof, as reflected on Xerox's books and records) remaining in the Term, discounted at 4% per annum; (c) the applicable Purchase Option; and (d) all applicable Taxes. You will pay all reasonable costs, including attorneys' fees, incurred by Xerox to enforce this Agreement. If you make the Equipment available for removal by Xerox within 30 days after notice of default, in the same condition as when delivered (reasonable wear and tear excepted), you will receive a credit for the fair market value of the Equipment as determined by Xerox, less any costs incurred by Xerox.

20. DATA SECURITY. Certain models of Equipment can be configured to include a variety of data security features. There may be an additional cost associated with certain data security features. The selection, suitability and use of data security features are solely Customer's responsibility. Upon request, Xerox will provide additional information to Customer regarding the security features available for particular Equipment models.

GENERAL TERMS & CONDITIONS:

21. NON-CANCELABLE AGREEMENT. THIS AGREEMENT CANNOT BE CANCELED OR TERMINATED EXCEPT AS EXPRESSLY PROVIDED HEREIN. YOUR OBLIGATION TO MAKE ALL PAYMENTS, AND TO PAY ANY OTHER AMOUNTS DUE OR TO BECOME DUE, IS ABSOLUTE AND UNCONDITIONAL AND NOT SUBJECT TO DELAY, REDUCTION, SET-OFF, DEFENSE, COUNTERCLAIM OR RECOUPMENT FOR ANY REASON WHATSOEVER, IRRESPECTIVE OF XEROX'S PERFORMANCE OF ITS OBLIGATIONS HEREUNDER. ANY CLAIM AGAINST XEROX MAY BE ASSERTED IN A SEPARATE ACTION AND SOLELY AGAINST XEROX.

22. REPRESENTATIONS. The individuals signing this Agreement are duly authorized to do so and all financial information you provide completely and accurately represents your financial condition.

23. LIMITATION OF LIABILITY. Except for liability under the indemnification obligations set forth in this Agreement, Xerox will not be liable to you for any direct damages in excess of \$10,000 or the amounts paid hereunder, whichever is greater, and neither party will be liable to the other for any special, indirect, incidental, consequential or punitive damages arising out of or relating to this Agreement, whether the claim alleges tortious conduct (including negligence) or any other legal theory. Any action you take against Xerox must be commenced within 2 years after the event that caused it.

24. CREDIT REPORTS. You authorize Xerox or its agent to obtain credit reports from commercial credit reporting agencies.

25. FORCE MAJEURE. Xerox will not be liable to you during any period in which its performance is delayed or prevented, in whole or in part, by a circumstance beyond its reasonable control. Xerox will notify you if such a circumstance occurs.

26. PROTECTION OF XEROX'S RIGHTS. You authorize Xerox or its agent to file, by any permissible means, financing statements necessary to protect Xerox's rights as lessor of the Equipment. You will promptly notify Xerox of a change in ownership, or if you relocate your principal place of business or change the name of your business.



THIS ADDENDUM ("Addendum") amends the Lease Agreement between the City of Cheyenne ("you") and Xerox Corporation ("Xerox") executed concurrently herewith (the "Agreement").

WHEREAS, You and Xerox agree to modify the Agreement as follows:

1. In Section 13, titled "**PAYMENT**", "30" is changed to "45".
2. In Section 19, titled "**DEFAULT & REMEDIES**", the phrase: "plus interest from the due date until paid at the rate of 1.5% per month;" is deleted. The phrase "including attorneys' fees" is deleted. The following is added to the end of the section: "Except for the enforcement of the payment terms of this Agreement, the City reserves all defenses and immunities available under the Wyoming Government Claims Act. W.S. 1-39-101 et seq."
3. In Section 31, titled "**MISCELLANEOUS**", "State of New York" is changed to "State of Wyoming" and "Monroe County, New York" is changed to "Laramie County, Wyoming". The phrase "(b) to waive their right to a jury trial" is deleted. The following is added to the end of the section: "Each party to this Agreement shall be responsible for any liability arising out of its own conduct. Neither party agrees to insure, defend, or indemnify the other."
4. Section 32, **GOVERNMENT IMMUNITY** is added as a new provision to the Agreement.
32. **GOVERNMENT IMMUNITY.** The City of Cheyenne and its officials and employees do not waive governmental immunity by entering this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Statue §1-39-101, et seq. and all other allowable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement between the parties. Further, the City of Cheyenne fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract, or any other theory of law, based on this Agreement.
5. Sections entitled "REMOTE SERVICES" and "TRADE-IN EQUIPMENT" shall be renumbered to 33 and 34 respectively, and all references to such sections shall be updated accordingly.

Capitalized terms that are not defined in this Addendum shall have the meaning assigned to them in the Agreement. Except as set forth above, the Agreement shall continue in full force and effect. In the event of a conflict between the terms of the Agreement and this Addendum, this Addendum shall control.

XEROX CORPORATION**CITY OF CHEYENNE**By: *Paul Richardson*

By: _____

Name: *Lou Richardson*

Name: _____

Title: *Contract Marketing Mgr*

Title: _____

Date: *7/26/13*

Date: _____



Lease Agreement

Customer: CHEYENNE, CITY OF

BillTo: CITY OF CHEYENNE
INFO TECHNOLOGY DIV

Rm 110

2101 Oneil Ave

Cheyenne, WY 82001-3512

Negotiated Contract : 072051401

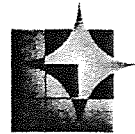
Install: CITY OF CHEYENNE
INFO TECHNOLOGY DIV

Rm 110

2101 Oneil Ave

Cheyenne, WY 82001-3512

SSPA
EXCELLENCE
IN SERVICE OPERATIONS
2008



Certified Three Consecutive Years!

Solution

Item	Product Description	Agreement Information		Trade Information	Requested Install Date
1. P4595CP (4595 COPIER / PNTR)	- High Capacity Feeder - 4595 Colorsan Kit - Booklet Fin, Punch, Insertor - Folder For Light Prod Finisher - Customer Ed - Analyst Services	Lease Term:	60 months	- Xerox WCP75 S/N MRU017227	9/1/2008
		Purchase Option:	FMV	Trade-In as of Payment 57	

Monthly Pricing

Item	Lease Minimum Payment	Print Charges			Maintenance Plan Features
		Meter	Volume Band	Per Print Rate	
1. P4595CP	\$1,003.66	1: Total	1 - 50,000 50,001+	Included \$0.0060	- Consumable Supplies Included for all prints - Pricing Fixed for Term
Total	\$1,003.66	Minimum Payments (Excluding Applicable Taxes)			

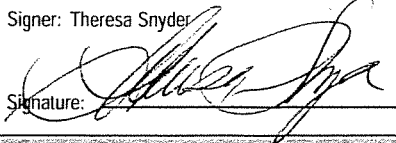
existing
contract

Authorized Signature

Customer acknowledges receipt of the terms of this agreement
which consists of 2 pages including this face page.

Signer: Theresa Snyder

Phone: (307)637-6300

Signature: 

Date: 8-14-08

Thank You for your business!
This Agreement is proudly presented by Xerox and

Rich Kuskie
(307)634-2679

For information on your Xerox Account, go to
www.xerox.com/AccountManagement



Terms and Conditions

INTRODUCTION:

1. NEGOTIATED CONTRACT. The Products are subject solely to the terms contained in the Negotiated Contract identified on the face of this Agreement, and, if applicable, the then current standard Xerox terms and conditions for the selected option or options, to the extent the subject matter of any such selected option is not addressed in the Negotiated Contract.

PRICING PLAN/OFFERING SELECTED:

2. PRICING FIXED FOR TERM. If Pricing Fixed for Term is identified in the Maintenance Plan Features, the amount you pay Xerox to maintain the Equipment shall not increase during the initial term of this Agreement.

3. REFINANCE OF PRIOR AGREEMENT. If Prior Xerox Agreement is identified in the Agreement, the balance is included in the amount financed under this Agreement and shall be paid for through your Minimum Payments. If your prior agreement is with a third party, you hereby acknowledge that you have the right to terminate the agreement

and agree to provide a statement from the third party identifying the equipment at issue and the amount to be paid off (as well as a statement from you identifying the payee and mailing address for your payoff check). If your prior agreement was with Xerox, the use of this refinance option shall render your prior agreement null and void. If you breach any of your obligations, the full amount of your prior agreement balance shall be immediately due and payable.

GENERAL TERMS & CONDITIONS:

4. REMOTE DATA COLLECTION. Xerox may automatically collect from the Equipment, via electronic transmission to a secure off-site location, certain data used by Xerox or a designated servicer to support and service the Equipment, or for Xerox billing, supplies replenishment or product improvement purposes. Automatically transmitted data may include, but is not limited to, product registration, meter read, supply level, Equipment configuration and settings, software version, and problem/fault code data. All such data shall be transmitted in a secure manner specified by Xerox.